

2:00 PM LINE 7

25-CLJ-10223

JPMORGAN CHASE BANK, N.A. VS MERYAMA ALLAM

JPMORGAN CHASE BANK, N.A.
MERYAMA ALLAM

BRIAN LANGEDYK
PRO SE

Defendant's Motion to Quash Service of Summons

TENTATIVE RULING:

The motion to quash is **GRANTED**. The registered process server's return is entitled to the presumption stated in Evidence Code section 647, but Defendant has offered evidence sufficient to rebut that presumption. Her declaration states that no person matching the physical description in the proof of service resided at her home and that no competent member of her household was present to accept service. Plaintiff therefore bears the burden to establish facts supporting valid substituted service and has not presented evidence sufficient to show that the unidentified recipient was a member of Defendant's household. (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413.)

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court alerts the parties to revised Local Rule 3.403(b)(iv), amended effective January 1, 2024, regarding the wording of proposed orders.

2:00 PM LINE 8

CLJ503426

BUREAUS INVESTMENT GROUP VS CARL DAHL JR

**BUREAUS INVESTMENT GROUP PORTFOLIO NO 13 LLC
CARL DAHL JR**

**ERIC MINTZ
JOHN G. DOWNING**

Plaintiff's Hearing on Claim of Exemption

TENTATIVE RULING:

The hearing is **CONTINUED**. The parties are to appear. The Court cannot determine the Claim of Exemption on the present record because the packet before the Court contains Judgment Creditor's opposition and its characterization of Judgment Debtor's claimed expenses, but not the underlying Claim of Exemption and Financial Statement. The levying officer is directed to file those documents before the continued hearing. The Court will then determine the amount of any exemption under Code of Civil Procedure sections 706.050 and 706.051.

**UD LAW AND MOTION CALENDAR
THURSDAY, SEPTEMBER 17, 2026**

2:00 PM LINE 9

26-UDL-00079

473-475 GRAND AVE LLC VS. ARTURO PEREZ, ET AL

**473-475 GRAND AVE LLC
ARTURO PEREZ**

**JOANNA KOZUBAL
PRO SE**

Plaintiff's Motion to Enforce Settlement Agreement Per C.C.P. 664.6 and for Judgment Pursuant to Stipulation

TENTATIVE RULING:

For the reasons stated below, Plaintiff 473-475 Grand Ave LLC's unopposed Motion to Enforce Settlement Agreement under Code of Civil Procedure section 664.6 and for Judgment Pursuant to Stipulation (the "Motion") is **GRANTED**.

BACKGROUND

Plaintiff is the owner of the premises at 475 1/2 Grand Avenue #3, South San Francisco, CA 94080 (the "Premises"). (Operative First Amended Complaint ("FAC"), p. 1, boxes 3 & 4.) Defendants signed a month-to-month lease of the Premises on or about November 26, 2020. (Id. at p. 2, box 6.a.) The lease is not attached because this action is solely for nonpayment of rent. (Id. at p. 2, box 6.f.2.) Plaintiff served each Defendant with a Three-Day Notice to Pay Rent or Quit, which expired on January 14, 2026, without compliance. (Id. at pp. 2-3, box 9 & Exh. 2.)

Plaintiff's agent and Defendants signed a Stipulation for Entry of Judgment or Dismissal of Action on April 17, 2026. (Kozubal Decl., ¶ 3 & Exh. 1 (the "Stipulation and Order").) The Stipulation and Order was filed on April 21, 2026. Commissioner Elliott signed it on April 20, 2026, adding procedural notes and setting a hearing for an Order to Show Cause re Dismissal. Judge McCannon later found that Defendants had breached the Stipulation and awarded possession to Plaintiff. (Order Entering Judgment, filed May 11, 2026.) A Writ of Possession issued on May 13, 2026.

This Court denied an earlier version of the Motion without prejudice for failure to establish proper service on Defendants and failure to state the hearing address. (Order filed Aug. 26, 2026 (the "Order").)

Through the present Motion, Plaintiff seeks a judgment directing Defendants to pay \$27,655.00.

LEGAL STANDARD

The Court has the power to compel obedience to its judgments and orders. (Code Civ. Proc., § 128, subd. (a)(4); *Security Trust & Savings Bank v. Southern Pacific Railroad Co.* (1935) 6 Cal.App.2d 585, 588-589.) The Court also has jurisdiction to enforce the Stipulation and Order under Code of Civil Procedure section 664.6.

THE MOTION IS GRANTED

Plaintiff has complied with the August 26, 2026 Order concerning service. The Proof of Service states that the Motion was served by first-class mail on each Defendant at the address of record. (Proof of Service filed with the Motion on Aug. 19, 2026.)

Plaintiff's counsel declares that Defendants breached the Stipulation and Order, resulting in entry of a judgment of possession on May 11, 2026, and eviction on June 11, 2026. (Kozubal Decl., ¶¶ 4-5.)

Plaintiff seeks:

1. past-due rent of \$17,700.00 (id., ¶ 6; see also FAC, p. 3, box 13 & p. 7, in Exh. 1);
2. daily damages of \$70.00 per day from February 1, 2026, through June 11, 2026, inclusive, totaling \$9,170.00 (\$70.00 x 131 days) (Kozubal Decl., ¶ 6; see also FAC, p. 3, box 14); and
3. costs of \$785.00 (\$440.00 in filing fees and \$345.00 in process-server fees) (Kozubal Decl., ¶ 7),

for a total of \$27,655.00 (ibid.).

The Court therefore **GRANTS** the Motion and enters judgment in Plaintiff's favor in the amount of \$27,655.00.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court alerts the parties to revised Local Rule 3.403(b)(iv), amended effective January 1, 2024, regarding the wording of proposed orders.

2:00 PM LINE 10

26-UDL-00415

MENTAL HEALTH ASSOCIATION OF SAN MATEO COUNTY VS. JORDAN MACHADO

MENTAL HEALTH ASSOCIATION OF SAN MATEO COUNTY
JORDAN MACHADO

STEVEN T. NAUMCHIK
PRO SE

Defendant's Motion to Set Aside and Vacate Judgment

TENTATIVE RULING:

For the following reasons, Defendant Jordan Machado's Motion to Set Aside and Vacate Judgment pursuant to Code of Civil Procedure section 473, subdivision (b), is **DENIED**.

Defendant seeks relief from the August 18, 2026 judgment on the ground that, although she knew the matter had been set for trial at 10:00 a.m., a calendar posted outside Department 2 on the morning of trial listed the matter for 11:00 a.m. Defendant declares that she arrived at the courthouse at approximately 9:50 a.m., observed the 11:00 a.m. posting, and left the courthouse to wait at the library across the street. Defendant further contends that she was prejudiced because trial began before she returned, Plaintiff presented testimony and exhibits—including Exhibit 28, a video—and the Court found her jury demand waived during her absence.

Code of Civil Procedure section 473, subdivision (b), permits discretionary relief from a judgment or proceeding taken against a party through "mistake, inadvertence, surprise, or excusable neglect." Although the statute is remedial and generally applied liberally in favor of a determination on the merits, the moving party must nevertheless establish that the mistake or neglect was excusable—that is, conduct that might reasonably have been committed by a prudent person under similar circumstances. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233; *State Farm Fire & Casualty Co. v. Pietak* (2001) 90 Cal.App.4th 600, 611.)

The Court accepts for purposes of this motion that the calendar posted outside Department 2 reflected an 11:00 a.m. time. That fact, however, does not establish excusable mistake or surprise under the circumstances presented here. Defendant was personally present on June 11, 2026 when the Court set trial for August 18, 2026 at **10:00 a.m. in Department 2**, and notice of the setting was thereafter mailed to her. Thus, Defendant had actual notice directly from the Court that trial was scheduled for 10:00 a.m.

The circumstances on the morning of trial further undermine the reasonableness of Defendant's decision to leave the courthouse. Department 2 opened at approximately 10:00 a.m., and Plaintiff's counsel was present. The courtroom door contains a window through which persons standing or sitting in the hallway immediately outside the courtroom can see into the courtroom. At approximately 10:00 a.m., Deputy Rios went into the hallway outside Department 2 and did not observe Defendant there. Accordingly, even assuming Defendant had viewed the erroneous 11:00 a.m. posting shortly before 10:00 a.m., a reasonably prudent litigant who already knew the Court had set trial for 10:00 a.m. would have remained outside the courtroom, observed that the courtroom had opened and the participants were present, or made inquiry concerning the discrepancy rather than leave the courthouse.

Nor did the Court immediately proceed in Defendant's absence. The matter was called at approximately 10:23 a.m. Defendant was not present. At approximately 10:25 a.m., the Court directed Deputy Rios to call Defendant's name in the hallway, and at approximately 10:26 a.m. Deputy Rios reported that there had been no response. Trial did not begin

until approximately 10:30 a.m. Defendant therefore had approximately 30 minutes after the scheduled trial time to return to the courtroom before testimony commenced. She did not enter the courtroom until approximately 10:55 a.m.

The Court therefore finds that Defendant's absence was reasonably avoidable. Defendant knew trial was set for 10:00 a.m.; according to her own declaration she was physically at the courthouse shortly before that time; the courtroom was visible from the hallway; Deputy Rios checked the hallway at approximately 10:00 a.m. and did not see Defendant; Defendant later failed to respond when her name was called; and Defendant nevertheless chose to leave the courthouse based solely on the conflicting posting. Under these circumstances, Defendant has not shown mistake, surprise, or neglect that was excusable within the meaning of section 473(b).

The Court also rejects Defendant's contention that the proceedings following her late arrival require the judgment to be vacated. Plaintiff presented one witness, Eru Mathewos, together with documentary and video evidence. Defendant emphasizes that Exhibit 28 was played before she entered the courtroom and that she had not previously reviewed the video. But Defendant was not denied the opportunity to confront Plaintiff's case after she appeared. The Court permitted Defendant to cross-examine Ms. Mathewos and afforded Defendant an opportunity to examine the evidence. Defendant did not meaningfully avail herself of those opportunities. Instead, she repeatedly interrupted the Court, counsel, and the witness, became increasingly disruptive and aggressive toward the witness, and refused to participate in an orderly examination of the evidence. Defendant's own declaration acknowledges that she interrupted the Court and counsel and was admonished concerning those interruptions.

The Court further notes that the witness toward whom Defendant directed her conduct in court was the same witness whom Defendant had previously been alleged to have threatened with physical harm. At trial, Plaintiff presented video evidence showing Defendant vandalizing property. Plaintiff also presented circumstantial evidence concerning vandalism to other tenants' doors, including the smearing of cat feces, and testimony concerning Defendant's volatile and abusive conduct toward other tenants and toward Ms. Mathewos. The judgment therefore was not entered merely because Defendant failed to appear. It followed the presentation of testimonial and documentary evidence on the merits. The Court's Minute Order specifically reflects reliance on Exhibit 28 in finding that Defendant damaged the common-area property and violated the rental agreement.

Defendant's contention that she was denied a meaningful opportunity to defend herself is also unpersuasive. There is a material distinction between a litigant being **denied** an opportunity to cross-examine a witness or review evidence and a litigant being **afforded** that opportunity but failing or refusing to exercise it in an orderly manner. Here, Defendant was given the opportunity to cross-examine Plaintiff's sole witness and address the evidence after her arrival. Her own disruptive conduct did not transform those opportunities into a denial of due process or establish prejudice warranting relief under section 473(b).

The Court likewise declines to set aside the jury-waiver determination. Code of Civil Procedure section 631, subdivision (f)(1), provides that a party waives jury trial by failing to appear at trial. Defendant failed to appear at the time set for trial despite having personally received the 10:00 a.m. setting. The Court waited, directed the deputy to look for and call Defendant, and only thereafter found the jury waived and proceeded with the court trial. Defendant has not established grounds warranting discretionary relief from that waiver under section 631, subdivision (g).

Finally, the Court need not resolve the parties' collateral dispute concerning the applicable unlawful-detainer discovery cutoff in order to decide this motion. Even assuming Defendant had timely outstanding discovery or had not received Exhibit 28 before trial, those matters do not establish that her failure to appear at 10:00 a.m. resulted from excusable mistake, surprise, or neglect, nor do they alter the Court's finding that Defendant was afforded an opportunity to confront the witness and evidence after she appeared.

Accordingly, Defendant Jordan Machado's Motion to Set Aside and Vacate Judgment is **DENIED**. The request to set aside the jury-waiver determination is also **DENIED**.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Plaintiff shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court alerts the parties to revised Local Rule 3.403(b)(iv), amended effective January 1, 2024, regarding the wording of proposed orders.

Posted: 3:50 P.M.

